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# Chapter 2 - Eligibility Requirements

## Guidance

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The employment-based immigrant classifications are comprised of the following categories of workers:

- First preference workers, including persons of extraordinary ability, outstanding professors or researchers, and multinational executives or managers (EB-1);<sup>[\[1\]](#)</sup>
- Second preference workers, including members of the professions holding advanced degrees and persons of exceptional ability (EB-2);<sup>[\[2\]](#)</sup> and
- Third preference workers, including skilled workers, professionals, and other workers (EB-3).<sup>[\[3\]](#)</sup>

The following table outlines the eligibility requirements that must be met in order for an alien to obtain permanent residence in the United States based on employment.

### General Eligibility Requirements for Employment-Based Immigration

If a job offer is required, the petitioning employer meets the classification-specific requirements and has the ability to pay the proffered wage.<sup>[\[4\]](#)</sup>

The beneficiary qualifies under one of the employment-based immigrant classifications.<sup>[\[5\]](#)</sup>

Where applicable, the beneficiary has an individual permanent labor certification application approved by the U.S. Department of Labor or seeks a Schedule A blanket labor certification.<sup>[\[6\]](#)</sup>

# Footnotes

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[^1] See [INA 203\(b\)\(1\)](#).

[^2] See [INA 203\(b\)\(2\)](#).

[^3] See [INA 203\(b\)\(3\)](#).

[^4] For more information about employer requirements, see Part F, Employment-Based Classifications [[6 USCIS-PM F](#)]. For information about employers that are successors to the entity that filed the labor certification application, see Chapter 3, Successor-in-Interest in Permanent Labor Certification Cases [[6 USCIS-PM E.3](#)]. For information on ability to pay, see Chapter 4, Ability to Pay [[6 USCIS-PM E.4](#)]. Finally, see [Business Structures](#).

[^5] See Part F, Employment-Based Classifications [[6 USCIS-PM F](#)].

[^6] See [INA 212\(a\)\(5\)](#). This requirement only applies to EB-2 and EB-3 classifications. See [INA 212\(a\)\(5\)\(D\)](#). For individual applications, see Chapter 6, Labor Certification [[6 USCIS-PM E.6](#)]. For Schedule A blanket certification, see Chapter 7, Schedule A Designation Petitions [[6 USCIS-PM E.7](#)].

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